

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE Buyer, LLC, Complainant v. COSCO Shipping Lines Co., LTD, Respondent

**COMPLAINANT’S MOTION TO WITHDRAW
PUBLIC VERSIONS OF ITS OPENING BRIEF AND PROPOSED FINDINGS OF FACT
AND FOR LEAVE TO RE-FILE CORRECTED PUBLIC AND CONFIDENTIAL
VERSIONS WITH REDACTIONS AND MARKING**

Complainant TZ SSE Buyer, LLC (“Complainant”), pursuant to 46 C.F.R. §§ 501.214, 502.5(b), 502.69, and 502.71, respectfully moves to withdraw the public versions of its Opening Brief and Proposed Findings of Fact (“CPFF”) filed on June 18, 2025, and for leave to re-file corrected public and confidential versions incorporating markings and redactions consistent with Respondent’s subsequently asserted confidentiality designations.

I. Background.

In advance of the June 18, 2025 filing deadline, Complainant made multiple good-faith efforts to coordinate with Respondent COSCO Shipping Lines Co. Ltd. (“Respondent”) regarding confidentiality designations required under the Protective Order and Initial Order entered in this proceeding. Complainant’s efforts included the following:

- On **Monday, June 16, 2025 at 1:22 PM Central Time**, Complainant sent Respondent a subset of exhibits containing materials that Respondent had previously designated as confidential during discovery. Complainant requested that Respondent identify and mark any information it continued to consider confidential and complete a Confidential Documents Table explaining the basis for each designation.
- On **Tuesday, June 17, 2025 at 12:16 PM Central Time**, Complainant followed up by providing Respondent with confidential versions of its Opening Brief and Proposed Findings of Fact. In that communication, Complainant specifically requested that Respondent (1) review the content of those documents, (2) clearly identify and mark any portions it believed to contain confidential information, and (3) update the

Confidential Documents Table to include any corresponding designations and justifications.

- At **1:41 PM Central Time**, Respondent acknowledged receipt of the materials and stated it would “revert soonest.”
- On **Wednesday, June 18, 2025**, Complainant sent follow-up emails at **12:31 PM** and **3:28 PM Central Time**, reiterating the urgency in light of the approaching filing deadline and requesting the necessary confidentiality markings.
- At **4:09 PM Central Time**, Respondent’s counsel replied that the requested information would be provided within ten minutes.
- At **4:22 PM Central Time**, Respondent sent a document titled “*24-09 TZ Opening Brief Exhibits Confidentiality Markings*,” identifying certain exhibits as confidential. However, Respondent did not mark any of the underlying documents or identify any specific confidentiality designations related to the Opening Brief or CPFF.
- Despite the very limited time, Complainant **redacted all of the exhibit information identified in Respondent’s table** and filed both confidential and redacted public versions of the Appendix and exhibits accordingly.
- At **4:44 PM Central Time**, Complainant responded to clarify that, based on its review of Respondent’s confidentiality table, no specific portions of the Opening Brief or Proposed Findings of Fact had been identified for redaction, and that those documents would therefore remain unchanged.

Respondent did not reply or raise any objections to this statement prior to the filing.

A copy of the relevant email correspondence is attached as **Exhibit A**.¹ As a result, and based on Respondent’s failure to identify any confidentiality designations for the Opening Brief or CPFF, Complainant filed identical public and confidential versions of those documents.

On Friday, June 20, 2025, Respondent sent an additional document table, titled “*24-09 Confidential Documents Table JFLS*” asserting for the first time that certain portions of the

¹ Complainant is including Respondent’s confidentiality designation tables solely to provide procedural context for this Motion. The tables were not marked as confidential, do not disclose the underlying documents or their contents, and are included only to demonstrate Complainant’s efforts to comply with the Protective Order.

Opening Brief and CPFF contained confidential information, and requested that Complainant withdraw and re-file public versions with redactions.

II. Relief Requested.

Complainant maintains that it acted in full compliance with the Protective Order and in good faith throughout. Respondent was provided multiple opportunities to identify and mark confidential information, and its failure to do so prior to the filing deadline left Complainant without a basis for redacting the public versions of its Opening Brief and CPFF.

Nevertheless, in the interest of efficiency and to avoid unnecessary motion practice, Complainant does not oppose withdrawing the public versions and re-filing them with redactions consistent with Respondent's recent designations.

Accordingly, Complainant respectfully requests that the Presiding Officer:

1. **Grant leave to withdraw** the public and confidential versions of Complainant's Opening Brief and CPFF filed on June 18, 2025; and
2. **Permit Complainant to re-file** corrected public and confidential versions of those documents with redactions consistent with Respondent's confidentiality designations.

Pursuant to 46 C.F.R. § 502.71, Complainant made good-faith efforts to confer with Respondent regarding this issue, including providing a draft of the proposed redactions for their review and confirmation. Respondent did not respond. See **Ex. A**.

Complainant is contemporaneously submitting corrected public and confidential versions of its Opening Brief and Proposed Findings of Fact with this Motion. These documents incorporate redactions and corresponding confidentiality markings based on Respondent's designations received on June 20, 2025. The public versions are labeled as Dkt. No. 24-09 Complainant's Corrected Opening Brief (Public Version) and Dkt. No. 24-09 Complainant's Corrected Proposed Findings of Fact (Public Version). The confidential versions are labeled as Dkt. No. 24-09

Complainant's Corrected Opening Brief (Confidential Version) and Dkt. No. 24-09 Complainant's Corrected Proposed Findings of Fact (Confidential Version).

Although the original filing deadline was Wednesday, June 18, 2025, Complainant is submitting these corrected versions promptly in response to Respondent's belated confidentiality designations. Complainant makes this filing in good faith and solely to ensure compliance with the Initial Order and confidentiality procedures.

Dated: June 20, 2025

Respectfully jointly submitted,

CLARK HILL PLC

/s/ Michell Pacheco

Michell Pacheco

Timothy R. Herman

R. Kevin Williams

therman@clarkhill.com

kwilliams@clarkhill.com

130 E. Randolph Street, Suite 3900

Chicago, IL 60601

Counsel for Complainant TZ SSE Buyer

LLC

CERTIFICATE OF SERVICE

I certify that on June 20, 2025, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502.

Attorneys for Respondent:

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman

Eric C. Jeffrey

Kaya C. Massey

Nicholas L. Webb

RFenneman@JeffreyFenneman.com

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Washington, DC 20005

202-904-2301

/s/ Michell Pacheco

Michell Pacheco

mpacheco@clarkhill.com

Clark Hill PLC

130 E Randolph Street, Suite 3900

Chicago, IL 60601

EXHIBIT A

Pacheco, Michell

From: Pacheco, Michell
Sent: Friday, June 20, 2025 1:49 PM
To: Kaya Massey
Cc: Rebecca Fenneman; Nicholas Webb; Eric C. Jeffrey; Herman, Timothy R.; Williams, R, Kevin
Subject: RE: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information
Attachments: Dkt. No. 24-09 Corrected Complainant's Proposed Findings of Fact (Confidential Version)(282571565.1).pdf; Dkt. No. 24-09 Corrected Complainant's Opening Brief (Confidential Version)(282571489.1).pdf

Good afternoon,

Attached are the revised Confidential Versions of our Opening Brief and Proposed Findings of Fact, with redactions marked as indicated in your recent confidentiality table.

We note that Proposed Finding of Fact No. 47 references an email communication that was produced by Complainant, not Respondent, during discovery. As such, the basis for redacting that material is unclear to us. However, out of an abundance of caution, we have included it in the redactions.

Please let us know if anything appears to be missing. We plan to re-submit our filings no later than 2:30 PM Central Time. If you do not have time to review these before then, or are unable to do so, please let us know. In either case, we have carefully reviewed your table and applied all redactions consistent with the designations provided.

Michell Pacheco

Attorney at Law

Clark Hill

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mpacheco@clarkhill.com | www.clarkhill.com

From: Pacheco, Michell
Sent: Friday, June 20, 2025 12:32 PM
To: Kaya Massey <kmassey@jeffreyfenneman.com>
Cc: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>; Nicholas Webb <nwebb@jeffreyfenneman.com>; Eric C. Jeffrey <ejeffrey@jeffreyfenneman.com>; Herman, Timothy R. <therman@clarkhill.com>; Williams, R, Kevin <kwilliams@clarkhill.com>
Subject: RE: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information

We will prepare a motion to withdraw and apply the redactions noted in your table.

Michell Pacheco

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mpacheco@clarkhill.com | www.clarkhill.com

From: Kaya Massey <kmassey@jeffreyfenneman.com>
Sent: Friday, June 20, 2025 12:05 PM
To: Pacheco, Michell <mpacheco@clarkhill.com>

Cc: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>; Nicholas Webb <nwebb@jeffreyfenneman.com>; Eric C. Jeffrey <ejeffrey@jeffreyfenneman.com>; Herman, Timothy R. <therman@clarkhill.com>; Williams, R, Kevin <kwilliams@clarkhill.com>
Subject: Re: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information

EXTERNAL EMAIL: The sender (kmassey@jeffreyfenneman.com) is external to Clark Hill. Exercise caution with links, attachments, or replies if this message is unexpected.

Michell,

Attached is a confidentiality table identifying precisely which pages of Complainant's Brief and which CPFFs are implicated by the confidentiality table that my colleague Nick Webb circulated on Wednesday. Notwithstanding that Nick identified specific exhibits you cited which were designated confidential, exhibits you used throughout your PFFs and Brief, you published a Public Version with no redactions in violation of the parties' confidentiality agreement, as enshrined by the January 14, 2025 Protective Order.

Accordingly, we must ask you to withdraw Complainant's Public Brief and file another one with the redactions that we have spelled out for you in the attached document.

I encourage you to review the Confidentiality Agreement and Protective Order, found at FMC Dkt. 24-09, Nos. 29 and 30. Notably, nowhere in those documents — nor in the FMC rules — is the provision that one party must “mark up” another party's filing for them in order for confidentiality to apply. Your request that we “mark up” your brief for you is not the appropriate method to handle confidentiality concerns.

This is a serious ethical violation that warrants, at the very least, a motion for sanctions and adverse inferences. We are waiting attentively for your proposal to fix this situation.

Best,
Kaya

On Wed, Jun 18, 2025 at 5:44 PM Pacheco, Michell <mpacheco@clarkhill.com> wrote:

Hi Rebecca,

Please see my initial request below. As noted, we do not seek confidential treatment for any part of our brief, proposed findings of fact or exhibits. On Monday, I asked that your team identify **and mark** any information in the exhibits that you consider confidential. If Respondent did not intend to provide those markings, it would have been helpful to know that earlier—as a professional courtesy—rather than learning at 4:30 PM on the filing deadline that you expected us to make those markings.

Given the lack of timely response, we will be filing a motion for an extension of time along with our confidential brief as is and will request additional time to apply redactions to the exhibits listed in the table you provided.

Additionally, based on our review of your table, we do not see anything that would warrant redaction in the Opening Brief or Proposed Findings of Fact, so those will remain unchanged.

Good afternoon,

Below is a link with Complainant's exhibits in support of its Opening Brief. These exhibits include documents that were produced by Respondent during discovery, some of which have been designated as confidential. We are providing these materials to give you the opportunity to review and identify any specific information within them that Respondent believes should remain confidential. We kindly ask that you clearly mark the portions you request to be redacted.

Once we receive your markings, we will apply the requested redactions and submit both a public version (with redactions applied) and a confidential version (with your markings preserved) of the exhibits.

You can access the relevant exhibits via the following link:
<https://clarkhill.box.com/s/fjdq8v2f6243911e7bu6oktq8a50o4ij>

Additionally, pursuant to the ALJ's initial order, we are attaching a table for you to complete. Please use it to explain the basis for designating any marked information as confidential.

We plan to share our Opening Brief and proposed Findings of Fact with you tomorrow, so that you may review and propose redactions to those documents as well, if necessary.

Michell Pacheco

Attorney at Law

Clark Hill

130 E. Randolph Street, Suite 3900, Chicago, IL 60601

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mpacheco@clarkhill.com | www.clarkhill.com

From: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Sent: Wednesday, June 18, 2025 4:34 PM

To: Pacheco, Michell <mpacheco@clarkhill.com>

Cc: Nicholas Webb <nwebb@jeffreyfenneman.com>; Kaya Massey <kmasley@jeffreyfenneman.com>; Eric C. Jeffrey

<ejeffrey@jeffreyfenneman.com>; Herman, Timothy R. <therman@clarkhill.com>; Williams, R, Kevin <kwilliams@clarkhill.com>

Subject: Re: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information

EXTERNAL EMAIL: The sender (rfenneman@jeffreyfenneman.com) is external to Clark Hill. Exercise caution with links, attachments, or replies if this message is unexpected.

Michell,

Sorry we're confused by your request. Also, I'll note the FMC rules give you 3 days after the confidential version to file the public version. See 46 CFR 502.5(2)(ii).

Thanks,

Rebecca

On Wed, Jun 18, 2025 at 5:25 PM Pacheco, Michell <mpacheco@clarkhill.com> wrote:

Thank you, Nick.

Should we expect the marked exhibits, opening brief and proposed findings of fact next?

Michell

Michell Pacheco

Attorney at Law

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mpacheco@clarkhill.com | www.clarkhill.com

From: Nicholas Webb <nwebb@jeffreyfenneman.com>

Sent: Wednesday, June 18, 2025 4:22 PM

To: Pacheco, Michell <mpacheco@clarkhill.com>

Cc: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>; Kaya Massey <kmassey@jeffreyfenneman.com>; Eric C. Jeffrey <ejeffrey@jeffreyfenneman.com>; Herman, Timothy R. <therman@clarkhill.com>; Williams, R, Kevin <kwilliams@clarkhill.com>

Subject: Re: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information

EXTERNAL EMAIL: The sender (nwebb@jeffreyfenneman.com) is external to Clark Hill. Exercise caution with links, attachments, or replies if this message is unexpected.

Michell,

Please see the attached.

Nick

On Wed, Jun 18, 2025 at 5:09 PM Rebecca Fenneman <rfenneman@jeffreyfenneman.com> wrote:

Michell,

Sorry to chime in. We will have this to you in 10 minutes. Again apologies for the delay.

Rebecca

On Wed, Jun 18, 2025 at 4:28 PM Pacheco, Michell <mpacheco@clarkhill.com> wrote:

Good afternoon,

This is our final follow-up regarding the confidential markings and the completed Confidential Documents Table. As our filing deadline is fast approaching, we will begin finalizing our brief and supporting documents.

If we do not hear from you by **4:00 PM Central Time**, we will proceed with filing within the hour based on the current versions of the exhibits.

Thank you.

Sincerely,

Michell Pacheco

Attorney at Law

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mpacheco@clarkhill.com | www.clarkhill.com

From: Pacheco, Michell

Sent: Wednesday, June 18, 2025 12:31 PM

To: Kaya Massey <kmassey@jeffreyfenneman.com>

Cc: Nicholas Webb <nwebb@jeffreyfenneman.com>; Rebecca A. Fenneman <rfenneman@jeffreyfenneman.com>; Eric C. Jeffrey <ejeffrey@jeffreyfenneman.com>; Herman, Timothy R. <therman@clarkhill.com>; Williams, R, Kevin <kwilliams@clarkhill.com>

Subject: RE: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information

Good afternoon,

We are following up on the messages below. As our deadline to file the brief and accompanying supporting documents is today, we would appreciate an update on the status of your review.

Could you please let us know when we can expect to receive your confidential markings, as well as the completed Confidential Documents Table?

Thank you for your attention to this matter.

Thank you,

Michell Pacheco

Attorney at Law

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mpacheco@clarkhill.com | www.clarkhill.com

From: Kaya Massey <kmassey@jeffreyfenneman.com>

Sent: Tuesday, June 17, 2025 1:41 PM

To: Pacheco, Michell <mpacheco@clarkhill.com>

Cc: Nicholas Webb <nwebb@jeffreyfenneman.com>; Rebecca A. Fenneman <rfenneman@jeffreyfenneman.com>; Eric C. Jeffrey <ejeffrey@jeffreyfenneman.com>; Herman, Timothy R. <therman@clarkhill.com>; Williams, R, Kevin <kwilliams@clarkhill.com>

Subject: Re: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information

EXTERNAL EMAIL: The sender (kmassey@jeffreyfenneman.com) is external to Clark Hill. Exercise caution with links, attachments, or replies if this message is unexpected.

Received, thank you. We will revert soonest.

On Tue, Jun 17, 2025 at 12:16 PM Pacheco, Michell <mpacheco@clarkhill.com> wrote:

Good afternoon,

In follow-up to our email below, please find attached confidential versions of Complainant's Opening Brief and Proposed Findings of Fact. We are providing these materials to give you the opportunity to review and identify any specific information within them that Respondent believes should remain confidential. We kindly ask that you clearly mark the portions you request to be redacted.

If you'd like to include an explanation as to the reason why you believe the information marked should remain confidential, please include it in the attached confidential documents table.

Once we receive your markings, we will apply the requested redactions and submit both a public version (with redactions applied) and a confidential version (with your markings preserved) of the exhibits.

Sincerely,

Michell Pacheco

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From: Pacheco, Michell <mpacheco@clarkhill.com>

Sent: Monday, June 16, 2025 1:22 PM

To: Nicholas Webb <nwebb@jeffreyfenneman.com>; Kaya Massey <kmassey@jeffreyfenneman.com>; Rebecca A. Fenneman <rfenneman@jeffreyfenneman.com>; Eric C. Jeffrey <ejeffrey@jeffreyfenneman.com>

Cc: Herman, Timothy R. <therman@clarkhill.com>; Williams, R, Kevin <kwilliams@clarkhill.com>

Subject: FMC Dkt. No. 24-09 - Request for Review and Redaction of Confidential Information

Importance: High

Good afternoon,

Below is a link with Complainant's exhibits in support of its Opening Brief. These exhibits include documents that were produced by Respondent during discovery, some of which have been designated as confidential. We are providing these materials to give you the opportunity to review and identify any specific information within them that Respondent believes should remain confidential. We kindly ask that you clearly mark the portions you request to be redacted.

Once we receive your markings, we will apply the requested redactions and submit both a public version (with redactions applied) and a confidential version (with your markings preserved) of the exhibits.

You can access the relevant exhibits via the following link:

<https://clarkhill.box.com/s/fjdq8v2f6243911e7bu6oktq8a50o4ij>

Additionally, pursuant to the ALJ's initial order, we are attaching a table for you to complete. Please use it to explain the basis for designating any marked information as confidential.

We plan to share our Opening Brief and proposed Findings of Fact with you tomorrow, so that you may review and propose redactions to those documents as well, if necessary.

Michell Pacheco

Attorney at Law

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*****PRIVILEGED AND CONFIDENTIAL COMMUNICATION*****

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*****PRIVILEGED AND CONFIDENTIAL COMMUNICATION*****

**24-09 TZ OPENING
BRIEF EXHIBITS
CONFIDENTIALITY
MARKINGS
SENT BY RESPONDENT
ON 6/18/2025**

C'S OPENING BRIEF EXHIBITS	DESCRIPTION	CONFIDENTIALITY DESCRIPTION
1. EXHIBIT 1 CX_000032-CX-000153	122 PAGES OF COSCO INVOICES	Confidential/AEO: 3 rd party information and banking information associated with named 3 rd parties
2. EXHIBIT 2 CX_001357-CX001385	TAKASE DEPOSITION TRANSCRIPT	Not confidential.
3. EXHIBIT 4 CX_001398-CX_001665	269 PAGES OF COSCO MBLs	All invoices are marked confidential. Contains third party information.
4. EXHIBIT 12 CX_002273-CX_002276	R'S EXCEL SPREADSHEET	Confidential: Contains commercially sensitive information.
5. EXHIBIT 13 CX_002278	R'S EXCEL WAIVED SHIPMENT SPREADSHEET	Confidential: Contains commercially sensitive information.
6. EXHIBIT 14 CX_002280-CX_002299	SUPPORTING DOCS FOR COSCO WAIVED SHIPMENT SPREADSHEET & 3 COSCO INV'S + COSCO PERDIEM EMAIL CORRESPONDENCE	Confidential: Third party information (3x invoices) & internal COSCO communications.
7. EXHIBIT 15 CX_002301-CX_002329	COSCO FREE TIME/DETENTION TARIFF + FREE TIME DEMURRAGE TARIFF	Not confidential.

8. EXHIBIT 16 CX_002338-CX_002339	RESPONDENT'S SUPPLEMENTAL RESPONSES TO DISCOVERY REQUESTS	Confidential: Responses to Respondent's Supplemental Responses to Discovery Requests #10 and #11 contain commercially sensitive information.
9. EXHIBIT 18 CX_002411-CX_002424	DEPO TRANSCRIPT OF PAUL KENT	Not confidential.
10. EXHIBIT 19 CX_002426-CX_002432	COSCO FRESHDESK TICKETS	Confidential: Contains commercially sensitive information.

**24-09 CONFIDENTIAL
DOCUMENTS TABLE
JFLS
SENT BY RESPONDENT
ON 6/20/2025**

Document Bates Number	DESCRIPTION	Classification Requested for	Reason(s) for Confidential Designation	Location in Complainant's Brief
CX_002182-002197	Internal COSCO communications	Confidential	Commercially sensitive information	CPFF 47; Brief pp. 17-18, 25, 28
CX_002272-002276	Respondent's Excel Spreadsheet	Confidential	Commercially sensitive information	CPFFs 52, 53; Brief pp. 9-10, 27
CX_000032-000153	COSCO invoices	Confidential	Commercially sensitive information	CPFFs 52, 53, 69, 70, 74; Brief pp. 20, 27-28
CX_002277-002278	Respondent's Excel Waived Shipment Spreadsheet	Confidential	Commercially sensitive information	CPFFs 55, 56; Brief pp. 26, 27, 28
CX_002425-002432	COSCO Freshdesk Tickets	Confidential	Commercially sensitive information	Brief p. 21